



INDIAN POLITY



ELECTION COMMISSION RECENT ISSUES OF ECI



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MODULE – 95

DYNAMIC ASPECTS OF ELECTION COMMISSION

VOTING BEHAVIOUR

INDELIBLE INK

ELECTION OFFICERS

ELECTRONIC VOTING MACHINES

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cVIGIL

SNAP ELECTION

PARTY SYMBOL ALLOCATION

PROXY VOTING IN INDIA

NOTA

“ONE NATION, ONE ELECTION”

REPRESENTATION OF PEOPLE ACT, 1951

CHANGING NATURE OF ELECTION

INDELIBLE INK USED IN ELECTIONS

CHEMICAL USED

SILVER NITRATE



PRINCIPLE BEHIND THE INK



Silver nitrate is colorless soluble salt.

When it is put on skin, Silver nitrate reacts with the salt present on skin forming silver chloride.

In the meantime, solvent alcohol evaporates in air.

Silver chloride is not soluble in water, and clings to your skin

It cannot be washed off with soap, water, alcohol, nail polish removal etc.

You must wait for few weeks until dead skin cells fall off.

INDELIBLE INK USED IN ELECTIONS



PRODUCTION OF INK

- Factory – **Mysore Paint and Varnish Limited**, is the only supplier of the ink.
- It is applied on the left fore finger of the voter.
- If it is not present, then the following order of fingers/arms are used:
 - ✓ any other finger of left-hand
 - ✓ Right fore-finger
 - ✓ Right hand any other finger
 - ✓ Left-arm or Right-arm

The chemical on exposure of sunlight leaves a mark that is impossible to wash off. It may also contain a solvent such as alcohol to allow faster drying.

ELECTION OFFICERS

CHIEF ELECTORAL OFFICER (CEO)

- Authorized to supervise the **election work** in the **state/Union Territory**.
- The Election Commission of India nominates or designates an Officer of the Government of the state / Union Territory as the Chief Electoral Officer in consultation with that State Government / Union Territory Administration.



DISTRICT ELECTION OFFICER (DEO)

- Supervises the election work of a **district**.
- He is subject to the **superintendence** of **CEO**.
- The Election Commission of India nominates or designates an officer of the state Government as the District Election Officer in consultation with the state government.



ELECTION OFFICERS**RETURNING OFFICER (RO)**

- Responsible for the conduct of elections in the **Parliamentary or assembly constituency concerned**.
- The Election Commission of India nominates this officer.
- He is also assisted by one or more **Assistant Returning Officer**.

ELECTORAL REGISTRATION OFFICER (ERO)

- **Responsible for the preparation of electoral rolls** for a Parliamentary / assembly constituency.
- The Election Commission of India, in consultation with the state / UT government, appoints an officer of the government or the local authorities as the Electoral Registration Officer.
- He is also assisted by one or more Assistant Electoral Registration Officers.

PRESIDING OFFICER

- The Presiding Officer with the assistance of polling officers **conducts the poll at a polling station**.
- The District Election Officer appoints the Presiding Officers and the Polling Officers.

OBSERVERS

- General Observers
- Expenditure Observers
- Police Observers
- Awareness Observers
- Micro Observers
- Assistant Expenditure Observers

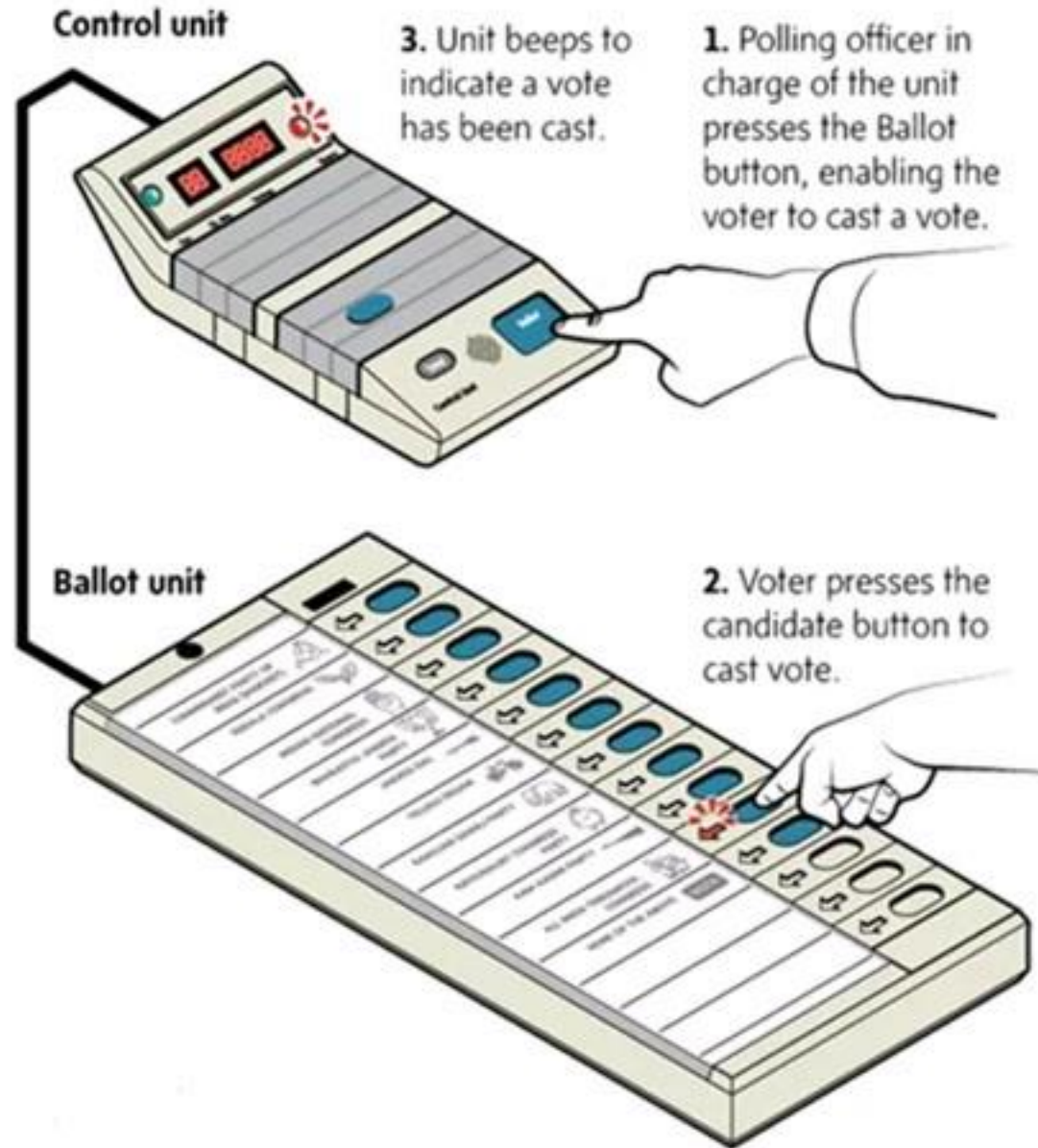
ELECTRONIC VOTING MACHINE



EVMs came as a replacement to ballot papers and was first used in No. 70 Parvur assembly constituency in Kerala in 1982.

- 1 An EVM consists of a "control unit" and a "balloting unit".
- 2 The control unit is with the Election Commission-appointed polling officer; the balloting unit is in the voting compartment into where voter casts her vote in secret.
- 3 It runs on a single alkaline battery fitted in the control unit.
- 4 They are manufactured by Electronics Corporation of India Limited (ECIL) and Bharat Electronics Limited (BEL).

THE ELECTRONIC VOTING MACHINE



A single ballot unit takes in the names of 16 candidates.



ELECTION COMMISSION OF INDIA

ELECTRONIC VOTING MACHINE

5

EVM randomization:

- Despite the EVMs being tamper proof, further precautions are taken by way of randomization process for the EVMs to be used in an election.
- This is done to make sure that nobody comes to know beforehand to which constituency/ polling station a specific EVM will be used.

4

Time stamping of votes: EVMs are installed with real time clock, full display system and time-stamping of every key pressing so there is no possibility of system generated/latent votes.

3

Secure Source Code: Software and source code developed in-house by selected group of engineers in BEL and ECIL. It allows a voter to cast the vote only once. The next vote can be recorded only after Presiding Officer enables the ballot on CU.

1

Non-reprogrammable: It consists of an integrated circuit (IC) chip that is one time programmable and cannot be reprogrammed

2

No external communication: Indian EVMs are standalone machines. They are not networked by any wired or wireless system.

SAFETY
FEATURES
WITHIN
EVMs



VOTER VERIFIABLE PAPER AUDIT TRAIL

In *Subramaniam Swamy vs. ECI (2013)*, SC said VVPAT is necessary for transparency in voting and must be implemented by ECI. In General Elections 2019, VVPATs were used in all the constituencies.



- 1 VVPAT is an independent system attached to an EVM that allows the voters to verify that their votes are cast as intended.

- 2 When a vote is cast, a slip is printed on the VVPAT printer containing the serial number, name and symbol of the candidate voted.

- 3 This remains visible to you through a transparent window for seven seconds.

- 4 Thereafter, this printed slip automatically gets cut and falls into a sealed drop box.

VOTER VERIFIABLE PAPER AUDIT TRAIL

SIGNIFICANCE OF VVPAT

- 1 VVPATs add another layer of transparency and reliability to convince voters about the sanctity of EVMs.
- 2 The EVMs and VVPATs are also environment-friendly as they use very little paper compared to paper ballots.

The Supreme Court increased voter verified paper audit trail (VVPAT) verification to five random Electronic Voting Machines (EVMs) in each Assembly segment/constituency. Earlier, only the VVPAT slips from one EVM in every Assembly segment/constituency was subjected to physical verification.



VVPAT
Voter Verifiable Paper Audit Trail

VVPAT will be used in all the polling stations in the forthcoming General Elections

VVPAT will be kept in voting compartment along with Ballot Unit

VVPAT has a transparent window which shows the printed paper slip when the vote is cast

The printed paper slip will display the Name, Serial Number and Election Symbol of the candidate for seven (7) seconds to the voter

After seven (7) seconds the printed paper slip will automatically get cut and drop in the sealed box below

VVPAT further enhances transparency and reliability in poll process

VERIFY YOUR VOTE
आमतौर पर भ्रम नहीं

ELECTION COMMISSION OF INDIA
URL : <https://eci.nic.in>

NAME

SERIAL NUMBER

SYMBOL

ELECTION COMMISSION OF INDIA

NATIONAL VOTER'S DAY

CONTEXT: India celebrated the 9th National Voters' Day on 25th January 2019

HIGHLIGHTS OF THE NATIONAL VOTER'S DAY 2019

NATIONAL
VOTERS'
DAY

25th January, 2019

NO VOTER TO BE LEFT BEHIND

- 1 It was organized by ECI and the theme for NVD 2019 was 'No Voter to be Left Behind'.

- 2 The day is to mark the **Foundation day of Election Commission of India**, which was established on 25th January 1950.

- 3 The main purpose of the NVD celebration is to encourage, facilitate and maximize the enrolment, especially for the new voters.

- 4 **My Vote Matters**, a Quarterly Magazine was launched on the occasion and the first copy shall be presented by the Commission to the Hon'ble President.

SYSTEMATIC VOTERS EDUCATION AND ELECTORAL PARTICIPATION



WHY IN NEWS?

A dedicated portal for the ECI's 'Systematic Voters Education and Electoral Participation' (SVEEP) initiative was launched.

ABOUT SVEEP INITIATIVE

1

It is the flagship program of the Election Commission of India for voter education, spreading voter awareness and promoting voter literacy in India.

2

Since 2009, ECI has been working towards preparing India's electors and equipping them with basic knowledge related to the electoral process.

SYSTEMATIC VOTERS EDUCATION AND ELECTORAL PARTICIPATION

COMPONENTS OF SVEEP PROGRAMME

- 1 Voters' Behaviour Survey
- 2 Formulation of State and District level SVEEP plans
- 3 Personnel for State level
- 4 State and District level core groups
- 5 Collaboration with Government departments
- 6 Collaboration with CSOs, Media and organisations
- 7 National Voters Day
- 8 Identification of National and State Icons

- The programme involved carrying out **Voters' Behaviour Surveys**.
- These surveys found out underlying reasons for **under registration**, **problems in getting duplicate EPIC**, **correcting names on voter list** and **various information gaps** and **low voter turn-out**.
- These surveys also helped to map the demographics of elector-segments with lower electoral participation.

SYSTEMATIC VOTERS EDUCATION AND ELECTORAL PARTICIPATION

WHAT CONSISTS OF VOTER EDUCATION?

Voter should be aware of:

- 1 Voter registration
- 2 EPIC/Identity proofs
- 3 Polling station location
- 4 Use of EVMs
- 5 Timing of the poll
- 6 Dos and don'ts with regard to Model Code of Conduct
- 7 Use of money, muscle and liquor power by candidate or their associate to influence electorate
- 8 How to file complaints



SVEEP



***SOME PROHIBITIONS UNDER MCC:***

Neither the State Government nor the Central Government shall

- Announce any new schemes or projects
- Use of official resources for any non-official purposes, and
- Combining of official visits with electioneering work

1

The model code refers to a set of norms laid down by the ECI, with the consensus of political parties. It is **not statutory**.

2

It spells out the dos and don'ts for elections.

3

Political parties, candidates and polling agents are expected to observe the norms, on matters ranging from the content of election manifestos, speeches and processions, to general conduct, so that free and fair elections take place.

4

The code comes into force on the announcement of the poll schedule and remains operational till the process is concluded.

The ECI has drawn flak over its response to the MCC violations such as use of Indian Army in political rallies despite ECI giving warning against it, announcement of India's first anti-satellite test etc.

cVIGIL



- 1** cVIGIL provide *time stamped evidentiary proof of model code of conduct / Expenditure Violation*, having live photo/video with auto location data.
- 2** This unique combination of time-stamping, live photo with auto location can be fairly relied upon by *election machinery* to navigate to the right spot and take prompt action.
- 3** The identity of the complainant will be kept confidential and will be provided with *Unique ID to track* and receive the follow up updates on the mobile.

SNAP ELECTION

CONTEXT: Israel went for snap elections in April 2019. In India, Telangana state has gone for snap elections for the state legislative assembly.

- 1 It is an election called earlier than expected.
- 2 Generally, it refers to an election in a parliamentary system called when it is not required either by law or convention, usually *to capitalize on a unique electoral opportunity*.
- 3 It *differs from a recall election* in that it is initiated by politicians (usually the head of government or ruling party) rather than voters.

- 4 It *differs from a by-election* in that the winners will serve an entire term as opposed to the remainder of an already established term.

Since the power to call snap elections usually lies with the incumbent, they usually result in increased majorities for the party already in power having been called at an advantageous time.

ELECTION COMMISSION OF INDIA

PARTY SYMBOL ALLOCATION



WHY IN NEWS?

Recently the Delhi High Court upheld the Election Commission of India's allotment of the 'Two Leaves' symbol to the AIADMK party following a dispute between the two rival factions of the party.

RULES GOVERNING ALLOCATION OF PARTY SYMBOL

- *Section 29A of the Representation of the People Act, 1951 governs the election symbols reservation, allocation order and registration of Political parties in India.*
- *The Election Symbols (Reservation and Allotment) Order, 1968 empowers the EC to recognise political parties and allot symbols.*

ELECTION COMMISSION OF INDIA

PARTY SYMBOL ALLOCATION



The Election Commission has two lists of symbols namely reserved and free.

Reserved symbols are allotted to candidates sponsored by recognized state or national parties.

Similarly a list of free symbols is prepared by ECI for independent candidates or those from unrecognized parties.

- India now has 2,293 political parties, 149 registered between February & March.
- These registered but unrecognised political parties do not have the privilege of contesting elections on a fixed symbol of their own.
- They have to choose from a list of 'free symbols' issued by the poll panel.

ELECTION COMMISSION OF INDIA

PARTY SYMBOL ALLOCATION

HOW THE SYMBOLS ARE ALLOTTED?

- 1** A party seeking registration has to submit an application with their choice of a symbol to the Commission within a period of **30 days following the date of its formation** as per guidelines prescribed by the ECI.
- 2** The allotment of symbols is made **on first-come-first-serve basis**.
- 3** If two or more political parties apply at the same time and opt for the same symbol, then the allotment is decided based on **draw of lots**.
- 4** Two or more recognised political parties can have the same symbol provided they are not contenders in the same States/UT.
For example: Federal Party of Manipur and Dravida Munnetra Kazhagam (DMK) use 'Rising Sun' as their symbol.
- 5** Initially, the commission allotted symbols **unilaterally**. However, from 1968 onwards, parties obtained a say in the choice of their symbol, which gave them an opportunity to choose meaningful visual representations of their identity.

ELECTION COMMISSION OF INDIA

PARTY SYMBOL ALLOCATION



SIGNIFICANCE OF PARTY SYMBOL IN INDIA

- 1 Symbols are critical for political parties since a large section of voters in the country are **illiterate** and depend on symbols to identify the party they want to vote for.
- 2 Having a pan-India symbol helps parties reach out to prospective voters. The symbols remain **evocative tool** of the major political groups.
- 3 It also reflects a **party's identity, values** and, sometimes, social base.

ELECTRONICALLY TRANSMITTED POSTAL BALLOT SYSTEM (ETPBS)

1

It provides an alternative method of quick dispatch of Postal Ballot paper electronically (earlier delivered by post) to the entitled Service Voters.

2

It was developed by the Election Commission with the help of Centre for Development of Advanced Computing (C-DAC).

3

It uses QR codes for uniqueness of the Service Voters and the secrecy in transmission is ensured by the use of OTP and PIN.

4

The postal ballots are delivered in electronic data format to voters on a real time basis.

5

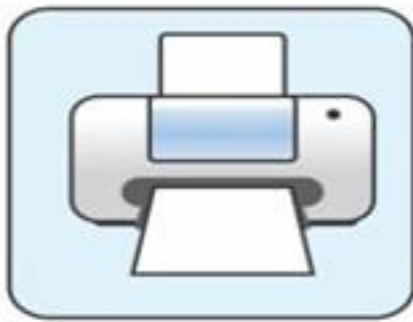
The voters can download the postal ballot and votes so cast would be received by the returning officer through post.

6

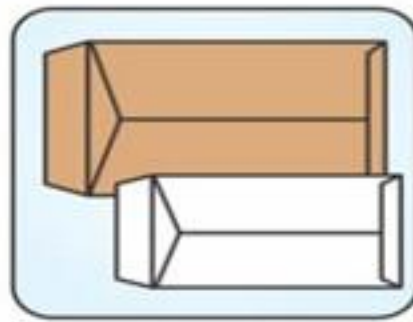
It was first used in Nellithope by-elections in Puducherry in 2016.

7

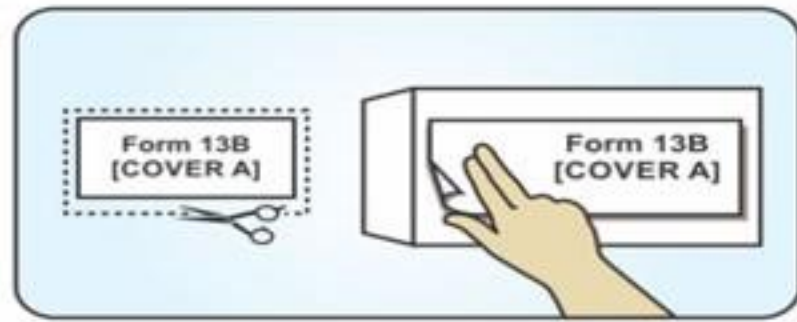
The ETPBS was recently used in Chengannur (Kerala) Assembly bypoll for service voters.



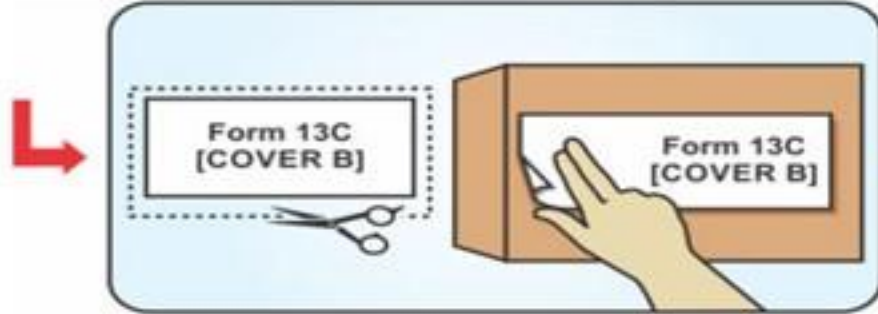
Download and Print pages as per the **"List of contents"**



Obtain one small and one big envelope



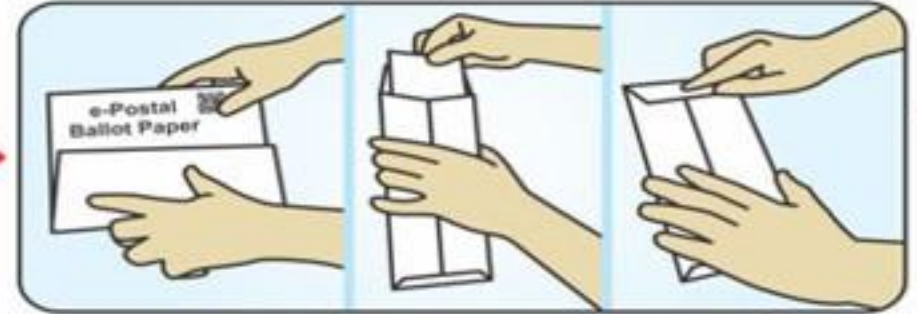
Cut and paste **"Form 13-B-Cover A"** label on small envelope



Cut and paste **"Form 13-C-Cover B"** label on big envelope



Mark your vote on the e-Postal Ballot Paper



Fold and insert the **e-Postal Ballot Paper** inside the Small envelope and seal it



Complete and sign **Form 13A-Declaration by Elector**



Put both the sealed small envelope and **Form 13A Declaration by Elector** into bigger envelope and seal



Dispatch / send by Post

NOTA



- Maharashtra State Election Commission (MSEC) recently made an order for *local body polls* that fresh elections should be held if NOTA 'emerges winner'.
- SC has ruled that NOTA option is applicable only for direct elections and *not indirect elections such as the Rajya Sabha polls*.

1

None of the above (NOTA) is a ballot option designed to allow the voter to indicate disapproval of all of the candidates in a voting system.

2

The idea behind the use of NOTA is to allow the voter to register a "protest" vote if none of the candidates is acceptable to her for whatever reason.

3

While NOTA votes are tallied, the candidate with the highest number of votes polled is declared elected irrespective of the NOTA total. Thus, NOTA in India *does not provide for a 'right to reject'*.

4

Election Commission currently *has no plenary power to call a fresh election even if NOTA secures highest votes*.

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